

Court No. - 21

Case :- WRIT - C No. - 33547 of 2024

Petitioner :- Ruknuddin Ahmad Parvez

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Amit

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Anish Kumar Gupta,J.

1. The petitioner has prayed for a direction to the respondents to permanently disconnect electricity supply to his premises (Service Connection No. 56284459000) and to correct the bill of the month of August 2024, wherein the supply has been shown under LMV-2 Category instead of LMV-1 Category.
2. Learned counsel for the Electricity Department submits that the petitioner can raise the dispute relating to tariff under Clause 6.5 of the Electricity Supply Code, 2005 and in case proper application is filed for permanent disconnection, it will be considered in accordance with law.
3. Having regard to the submission made, we ***dispose of*** the instant petition by giving liberty to the petitioner to file proper application for permanent disconnection complying with the requirements if any stipulated in this regard and raise grievance regarding wrong application of tariff under Clause 6.5 of the Electricity Supply Code, 2005.
4. We further provide that the application if so moved would be decided in accordance with law within three weeks from the date of filing of the application.
5. In the meantime, the respondent would not take any coercive action against the petitioner provided 50 percent of the amount in arrears is deposited by the petitioner within two weeks.
6. It is further provided that the petitioner shall file application under Clause 6.5 of the Electricity Code, 2005 also within two weeks.
7. In case the application is not filed within two weeks or the amount stipulated as above, is not deposited the protection granted to the petitioner would stand discharged automatically

and it shall become open to the respondent/Electricity Department to proceed further in the matter in accordance with law.

Order Date :- 21.10.2024

Shubham Arya

(Anish Kumar Gupta, J.) (Manoj Kumar Gupta,J.)